POLITY 11 | PARLIAMENTARY SYSTEM

Formal vesting -> responsible advice -> lower-House confidence -> continuous accountability
Union-State constitutional mirror decoded for independent revision

1 Parliamentary government as an accountability system

CENTRAL QUESTION
Who exercises executive power, who answers for it, and how can the House withdraw authority?

INSTITUTIONAL CHAIN
voters -> Lok Sabha / Assembly -> majority or coalition support -> PM / CM + Council
-> policy and administration -> questions, finance and confidence -> political consequence

IDENTITY
parliamentary / responsible / cabinet government = continuing lower-House confidence
Westminster = historical source family; India = republican constitutional adaptation

THREE LEVELS OF RULE
constitutional text -> enforceable legal architecture
convention -> restraint, solidarity, caretaker conduct
political practice -> parties, coalitions, whips, agenda and opposition

FINAL IDEA
Accountability is a continuing relationship, not a decorative list of eight features.

2 Origin and Indian constitutional timeline

WESTMINSTER EVOLUTION — CONCEPTUAL
Crown's ministers -> parliamentary control of supply -> confidence and collective responsibility
-> constitutional head acts through politically answerable ministers

INDIAN SEQUENCE
1919: provincial dyarchy gave ministers limited transferred subjects and legislative answerability
1935: provincial autonomy enabled responsible ministries; federal central scheme did not operate
1946-49: Constituent Assembly chose responsibility, familiarity, coordination and plural inclusion
26 Jan 1950: Union and State parliamentary executives began under the supreme Constitution
1976: 42nd Amendment: amended Article 74(1); action according to ministerial advice made explicit
1978: 44th Amendment: inserted Article 74(1) proviso; one return, reiterated advice binds
1989 onward: coalition phases tested stability; later full-term coalitions qualified inevitability
2024-26: simultaneous-elections proposal remains a Bill, not operative Article 82A

TRAP
British origin does not make India a copy or give Parliament British-style sovereignty.

3 Union and State constitutional architecture

UNION-STATE CONSTITUTIONAL MIRROR
formal vesting -> Art 53: Union power in President | Art 154: State power in Governor
aid/advice -> Art 74: PM-Council advises President | Art 163: CM-Council advises Governor
Governor discretion exists only where the Constitution recognises it
responsibility -> Art 75(3): Council to Lok Sabha | Art 164(2): Council to Assembly
business form -> Art 77: action in President's name | Art 166: action in Governor's name
information -> Art 78: PM-President channel | Art 167: CM-Governor channel
participation -> Art 88: ministers/AG in Parliament | Art 177: ministers/AG-State in Legislature
office permits participation; voting follows membership

UNION DETAIL
Art 74 -> PM-headed Council aids and advises; one reconsideration; reiterated advice binds
Art 74(2) -> no inquiry into whether/what advice; resulting action remains reviewable
Art 75 -> appointment, 15% cap, pleasure, Lok Sabha responsibility, oath, six months
Art 77 -> action in President's name; authentication and business allocation
Art 78 -> PM communicates decisions/information; may place ministerial decision before Council
Art 88 -> minister may participate in either House; vote only where a member

STATE DETAIL
Art 154 -> executive power formally vested in Governor; read with Arts 163-164
Art 163 -> aid/advice with bounded constitutionally recognised Governor discretion
Art 164(1A) -> 15% Assembly ceiling and minimum 12; Art 164(4) -> six months
Art 177 -> ministers/Advocate-General participate; office alone gives no vote

DISTINCTION
President's reconsideration is express; Governor discretion depends on Article 163/specific text.

4 Nominal and real executive, advice and cases

FORMAL HEAD	RESPONSIBLE POLITICAL EXECUTIVE
President / Governor	PM / CM and Council of Ministers
continuity, appointment, form	policy choice, advice and House accountability

ADVICE FLOW
Council decides -> head receives advice -> President may return once
-> Council reconsiders -> reiterated advice binds -> ministers answer politically

CASE STRIP
Ram Jawaya (1955): executive formulates policy within parliamentary responsibility
U.N.R. Rao (1971): Council continues despite Lok Sabha dissolution; Article 74 remains necessary
Shamsher Singh (1974): President/Governor ordinarily act as constitutional heads on advice
Nabam Rebia (2016): *in its Assembly-summoning context, rejected expansive personal discretion*

QUALIFICATIONS
'nominal' != useless | formal vesting != personal rule | Art 74(2) != action immunity
Detailed President/Governor powers remain with Topics 15 and 19.

5 Ministerial responsibility, membership and executive core

COLLECTIVE — ARTICLE 75(3) / 164(2)
whole Council survives through lower-House confidence + public solidarity + unified answerability

INDIVIDUAL
Article 75(2)/164(1) pleasure operates within responsible government, normally through PM/CM
one minister may leave without the whole Council falling

LEGAL
India has no universal British countersignature rule for every act of the head of State

MEMBERSHIP AND LEGISLATIVE PARTICIPATION
minister may start as non-member -> must enter either House/legislature within six months
Article 88 permits participation across Houses but voting follows House membership
Article 177 supplies the same State rule for ministers and the Advocate-General

COUNCIL vs CABINET
Council = wider constitutional ministry sharing collective responsibility
Cabinet = smaller senior decision core; PM/CM coordinates both

TRAP
Pleasure is not an independent political dismissal power of the President against the PM's team.

6 Core features with coalition and accountability qualifications

1 dual executive -> constitutional head + real ministry
2 majority support -> single party, coalition or supported minority capable of confidence
3 collective responsibility -> confidence + solidarity
4 political homogeneity -> common programme; coalition consensus may replace identical ideology
5 fusion / double membership -> ministers sit in legislature; India still has constitutional checks
6 PM / CM leadership -> composition, agenda and coordination, but not legal omnipotence
7 lower-House dissolution -> flexible tenure; upper House is not dissolvable
8 secrecy -> Third Schedule oath; not immunity from courts, Parliament, audit or law
9 opposition/accountability -> alternative government, questions, motions and committees

SYSTEM LINE
The features operate around one centre: a ministry must continuously justify and retain authority.

7 Confidence, dissolution, caretaker restraint and floor tests

SUPPORT
majority / coalition / outside support -> floor confidence -> authority to govern

LOSS
carried no-confidence or essential supply defeat -> resignation
or constitutionally proper dissolution after considering a viable alternative
ordinary ball defeat != automatic fall; context and explicit confidence framing matter

DISSOLUTION / CARETAKER
U.N.R. Rao -> Council continues during dissolution
caretaker restraint is convention, not a separately codified constitutional government form
avoid major irreversible choices except necessity; qualify by source and circumstances

STATE FLOOR TESTS
S.R. Bommai (1994): disputed majority ordinarily tested on Assembly floor; Art 356 reviewable
Nabam Rebia (2016): Governor cannot claim a general personal power over Assembly functioning
Subhash Desai (2023): intra-party dispute alone is insufficient; objective loss material needed

BOUNDARY
Detailed hung-House, Speaker and anti-defection rules belong to Topics 19 and 42.

8 Parliamentary and presidential systems without false absolutes

AXIS	PARLIAMENTARY	PRESIDENTIAL
executive	dual	single political executive
selection	legislative support	separate electoral mandate
term	confidence-dependent/flexible	fixed constitutional tenure
responsibility	daily to lower House	no collective responsibility to legislature
membership	ministers are/become members	executive officers outside legislature
power relation	fusion with checks	separation with checks and balances
dissolution	lower House may dissolve	President cannot dissolve Congress
strength	coordination, replaceability	tenure stability, decisiveness
risk	instability, cabinet dominance	deadlock, personal concentration

NO AUTOMATIC VERDICTS
presidential != authoritarian by definition | parliamentary != democratic/accountable by itself
India has fusion plus federalism, rights, bicameralism, judicial review and constitutional limits.

9 Indian adaptation — Westminster source, constitutional redesign

BORROWED LOGIC
constitutional head | responsible ministry | confidence | collective responsibility | Cabinet

INDIAN REDESIGN
elected republican President, not hereditary Crown
written supreme Constitution, not orthodox parliamentary sovereignty
federal distribution and Rajya Sabha, not a purely unitary Westminster order
judicial review and Fundamental Rights
strong party discipline and Tenth Schedule influence
bicameral asymmetry: Lok Sabha controls confidence; Rajya Sabha retains other constitutional roles
emergency framework may alter federal operation but does not erase responsible-government text
Indian PM may be from either House; UK PM is conventionally from Commons

CONCLUSION
India constitutionalised Westminster responsibility inside a federal, rights-based republic.

10 Performance, evidence and reform

MERITS
continuous accountability | executive-legislative coordination | adaptable replacement
coalition inclusion | avoidance of separately elected executive-legislature deadlock

DEMERITS
unstable ministries / policy churn | cabinet or *PM* dominance | majoritarianism
executive control of House time | weak deliberation | defections | criminalisation
weak internal party democracy | secrecy/information imbalance

EVIDENCE
short-lived 1979, 1989-91 and 1996-98 ministries show instability risk
full-term coalitions after 1999 show instability is conditional, not inherent
PRS 17th Lok Sabha: 274 sitting days; 16% Bills referred vs 26% in 16th and 71% in 15th

REFORM
predictable sittings | routine committee referral | stronger research and opposition space
narrower whip use | transparent coalition agreements | internal party democracy
proper Money Bill classification | restrained ordinances | timely ethics/criminal-case reform

VERDICT
Repair accountability institutions rather than assume a presidential switch solves politics.

11 Current status, PYQs and close-option discipline

CURRENT CHECK — 7 SEPTEMBER 2026
129th Amendment Bill, introduced 17 Dec 2024 -> proposed Article 82A
official Sansad page still lists Joint Committee; no published final report located in bounded check
BILL != ACT | proposed Article != current Constitution | no implementation year
Cabinet Secretariat -> business rules, Cabinet support and inter-ministerial coordination

AUDITED PYQs
2020 Prelims Q11 -> defining responsibility/removability
2021 Prelims Q77 -> India-UK limits and Constitution Bench proposition
2024 GS-II Q3 -> cabinet growth and practical marginalisation of parliamentary supremacy
2018 GS-II Q13 -> India-US tenets, supporting comparative route
2023 GS-II Q4 -> British and Indian parliamentary sovereignty, supporting route
historical objective letters withheld because final official keys are not locally held

TRAPS
Lok Sabha, not Rajya Sabha, controls survival | advice may be returned once
six months is temporary | coalition remains parliamentary | Article 82A is only proposed

12 Answer-writing spine and qualified conclusion

10 MARKS / 150 WORDS
define accountability relation -> 2-3 mechanisms -> Article/case -> limit -> verdict

15 MARKS / 250 WORDS
exact comparison or causal chain -> Indian evidence -> counterpoint -> reform -> conclusion

20 MARKS / 250 WORDS
criteria -> architecture -> performance evidence -> objection/reply -> graded judgment

PARAGRAPH FORMULA
claim -> named Article/case/institution/data -> explain accountability mechanism
-> qualify legal text/convention/practice or system boundary

TOPIC LINKS, NOT DUPLICATION
President/PM/Parliament/Governor -> Topics 15-20 | anti-defection -> Topic 42

FINAL LINE
India's parliamentary system trades some tenure certainty for continuing responsibility;
its democratic quality depends on real scrutiny, party competition and constitutional restraint.